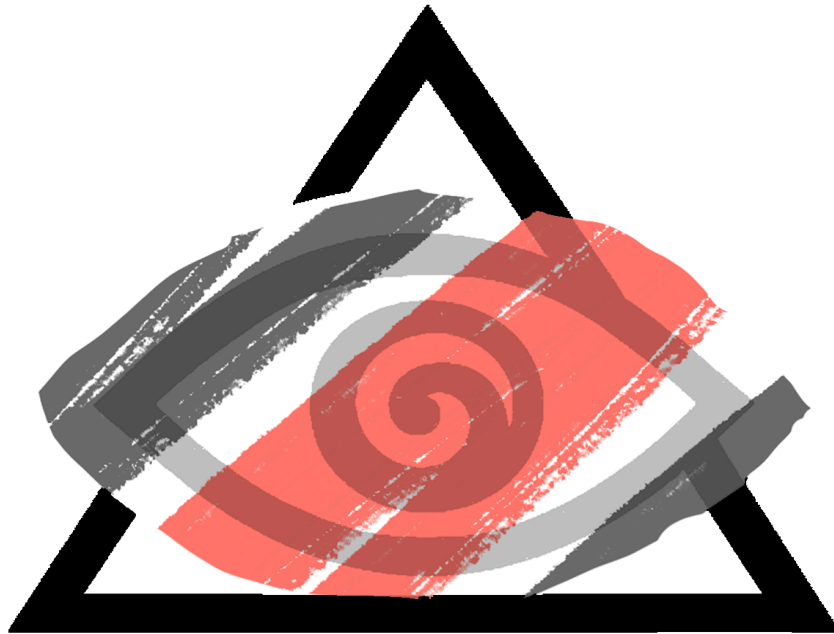




CONSTITUTION OF THE CAR PARK SOCIETY INC.

(Amended and adopted incorporating governance changes 18 September 2025)

INTRODUCTORY RULES

Name

The name of the society is **THE CAR PARK SOCIETY INC** (in this Constitution referred to as the 'Society').

Charitable status

The Society is not and does not intend to be registered as a charitable entity under the Charities Act 2005.

Definitions

In this Constitution, unless the context requires otherwise, the following words and phrases have the following meanings:

- **'Act'** means the Incorporated Societies Act 2022 or any Act which replaces it (including amendments to it from time to time), and any regulations made under the Act or under any Act which replaces it.
- **'Annual General Meeting'** means a meeting of the Members of the Society held once per year which, among other things, will receive and consider reports on the Society's activities and finances.
- **'Chairperson'** means the Officer responsible for chairing General Meetings and committee meetings, and who provides leadership for the Society.
- **'Committee'** means the Society's governing body.
- **'Constitution'** means the rules in this document.
- **'Deputy Chairperson'** means the Officer elected or appointed to deputise in the absence of the Chairperson.

- **‘General Meeting’** means either an Annual General Meeting or a Special General Meeting of the Members of the Society.
- **‘Interested Member’** means a Member who is interested in a matter for any of the reasons set out in section 62 of the Act.
- **‘Interests Register’** means the register of interests of Officers, kept under this Constitution and as required by section 73 of the Act.
- **‘Matter’** means—
 1. the Society’s performance of its activities or exercise of its powers; or
 2. an arrangement, agreement, or contract (a transaction) made or entered into, or proposed to be entered into, by the Society.
- **‘Member’** means a person who has consented to become a Member of the Society and has been properly admitted to the Society who has not ceased to be a Member of the Society.
- **‘Notice’** to Members includes any notice given by email, post, or courier.
- **‘Officer’** means a natural person who is:
 - a member of the Committee, or
 - occupying a position in the Society that allows them to exercise significant influence over the management or administration of the Society, including any Chief Executive or Treasurer.
- **‘Register of Members’** means the register of Members kept under this Constitution as required by section 79 of the Act.
- **‘Secretary’** means the Officer responsible for the matters specifically noted in this Constitution.
- **‘Special General Meeting’** means a meeting of the Members, other than an Annual General Meeting, called for a specific purpose or purposes.
- **‘Working Days’** mean as defined in the Legislation Act 2019. Examples of days that are not Working Days include, but are not limited to, the following — a Saturday, a Sunday, Waitangi Day, Good Friday, Easter Monday, ANZAC Day, the Sovereign’s birthday, Te Rā Aroki a Matariki/Matariki Observance Day, and Labour Day.

Purposes

The primary purposes of the Society are to—

- Foster and support a community of artists, researchers, performers, and creative practitioners.
- Engage in artistic projects that explore historical, cultural, and spatial themes, particularly those concerning Aotearoa’s urban landscapes.
- Reclaim space through creative expression and community engagement, with a focus on Te Ao Māori values.
- Deliver public programmes including exhibitions, workshops, performances, and participatory events.
- Encourage collaboration, education, and critical dialogue around suppressed histories and future imaginaries.
- Produce and distribute media, including publications, audio-visual content, and digital art.

The Society must not operate for the purpose of, or with the effect of—

- distributing, any gain, profit, surplus, dividend, or other similar financial benefit to any of its Members (whether in money or in kind); or
- having capital that is divided into shares or stock held by its Members; or
- holding, property in which its members have a disposable interest (whether directly, or in the form of shares or stock in the capital of the society or otherwise).

But the Society will not operate for the financial gain of Members simply if the Society—

- engages in trade,
- pays a Member for matters that are incidental to the purposes of the Society, and the Member is a not-for-profit entity,
- distributes funds to a Member to further the purposes of the Society, and the Member—
 - o is a not-for-profit entity, and
 - o is affiliated or closely related to the Society, and
 - o has the same, or substantially the same, purposes as those of the Society.
- reimburses a Member for reasonable expenses legitimately incurred on behalf of the Society or while pursuing the Society's purposes,
- provides benefits to members of the public or of a class of the public and those persons include Members or their families,
- provides benefits to Members or their families to alleviate hardship,
- provides educational scholarships or grants to Members or their families,
- pays a Member a salary or wages or other payments for services to the Society on arm's length terms,
- provides a Member with incidental benefits (for example, trophies, prizes, or discounts on products or services) in accordance with the purposes of the Society,
- on removal of the Society from the Register of Incorporated Societies having its surplus assets distributed under subpart 5 of Part 5 of the Act to a Member that is a not-for-profit entity.

Tikanga, kawa, culture or practice

The tikanga or culture of the Society is as follows—

- The Society is grounded in Te Ao Māori values, promoting indigenous-led futures, community transformation, critical dialogue, and the creative reclamation of space.
- The Society is committed to honouring Te Tiriti o Waitangi.

This Constitution shall be interpreted having regard to that tikanga, kawa, culture or practice.

Act and Regulations

Nothing in this Constitution authorises the Society to do anything which contravenes or is inconsistent with the Act, any regulations made under the Act, or any other legislation.

Restrictions on Society Powers

The Society must not be carried on for the financial gain of any of its members.

The Society's capacity, rights, powers, and privileges are subject to the following restrictions:

- The Society does not have the power to borrow money.

Registered Office

The registered office of the Society shall be at such place in New Zealand as the Committee from time to time determines.

Changes to the registered office shall be notified to the Registrar of Incorporated Societies—

- at least 5 working days before the change of address for the registered office is due to take effect, and
- in a form and as required by the Act.

Contact Person

The Society shall have at least 1 but no more than 3 contact person(s) whom the Registrar can contact when needed.

The Society's contact person must be:

- At least 18 years of age, and
- Ordinarily resident in New Zealand.

A contact person can be appointed by the Committee or elected by the Members at a General Meeting.

Each contact person's name must be provided to the Registrar of Incorporated Societies, along with their contact details, including:

- a physical address or an electronic address, and
- a telephone number.

Any change in that contact person or that person's name or contact details shall be advised to the Registrar of Incorporated Societies within 20 Working Days of that change occurring, or the Society becoming aware of the change.

MEMBERS

Minimum number of members

The Society shall maintain the minimum number of Members required by the Act.

Types of members

The classes of membership and the method by which Members are admitted to different classes of membership are as follows:

- **Member:** A Member is an individual or body corporate admitted to membership under this Constitution and who or which has not ceased to be a Member.
- **Life Member:** A Life Member is a person honoured for highly valued services to the Society elected as a Life Member by resolution of a General Meeting passed by a simple majority of those Members present and voting. A Life Member shall have all the rights and privileges of a Member and shall be subject to all the same duties as a Member except those of paying subscriptions and levies.
- **Honorary Member:** An Honorary Member is a person honoured for services to the Society or in an associated field elected as an Honorary Member by resolution of a General Meeting passed by a simple majority of those present and voting. An Honorary Member has no membership rights, privileges or duties.

Becoming a member: consent

Every applicant for membership must consent in writing to becoming a Member.

Becoming a member: process

An applicant for membership must complete and submit the application form, agree to the declaration, supply any information, or attend an interview as may be reasonably required by the Committee regarding an application for membership and will become a Member on acceptance of that application by the Committee.

The Committee may accept or decline an application for membership at its sole discretion. The Committee must advise the applicant of its decision.

The signed written consent of every Member to become a Society Member shall be retained in the Society's membership records.

Members' obligations and rights

Every Member shall provide the Society in writing with that Member's name and contact details (namely, physical or email address and a telephone number) and promptly advise the Society in writing of any changes to those details.

- All Members shall promote the interests and purposes of the Society and shall do nothing to bring the Society into disrepute.
- The Committee may decide what access or use Members may have of or to any premises, facilities, equipment or other property owned, occupied or otherwise used by the Society, and to participate in Society activities, including any conditions of and fees for such access, use or involvement.

Ceasing to be a member

A Member ceases to be a Member—

- by resignation from that Member's class of membership by written notice signed by that Member to the Committee, or
- on termination of a Member's membership following a dispute resolution process under this Constitution, or
- on death (or if a body corporate on liquidation or deregistration, or if a partnership on dissolution of the partnership), or
- by resolution of the Committee where:
 - In the opinion of the Committee the Member has brought the Society into disrepute.

With effect from (as applicable)—

- the date of receipt of the Member's notice of resignation by the Committee (or any subsequent date stated in the notice of resignation), or
- the date of termination of the Member's membership under this Constitution, or
- the date of death of the Member (or if a body corporate from the date of its liquidation or deregistration, or if a partnership from the date of its dissolution), or
- the date specified in a resolution of the Committee.

When a Member's membership has been terminated the Committee shall promptly notify the former Member in writing.

Obligations once membership has ceased

A Member who has ceased to be a Member under this Constitution—

- remains liable to pay all subscriptions and other fees to the Society's next balance date,
- shall cease to hold himself or herself out as a Member of the Society, and
- shall return to the Society all material provided to Members by the Society (including any membership certificate, badges, handbooks and manuals),
- shall cease to be entitled to any of the rights of a Society Member.

Becoming a member again

Any former Member may apply for re-admission in the manner prescribed for new applicants, and may be re-admitted only by resolution of the Committee.

But, if a former Member's membership was terminated following a disciplinary or dispute resolution process, the applicant may be re-admitted only by a resolution passed at a General Meeting on the recommendation of the Committee.

GENERAL MEETINGS

Procedures for all general meetings

The Committee shall give all Members at least 5 Working Days' written Notice of any General Meeting and of the business to be conducted at that General Meeting.

That Notice will be addressed to the Member at the contact address notified to the Society and recorded in the Society's register of members. The General Meeting and its business will not be invalidated simply because one or more Members do not receive the Notice of the General Meeting.

Only financial Members may attend, speak and vote at General Meetings—

- in person, or
- by a signed original written proxy (an email or copy not being acceptable) in favour of some individual entitled to be present at the meeting and received by, or handed to, the Committee before the commencement of the General Meeting, or
- through the authorised representative of a body corporate as notified to the Committee, and
- no other proxy voting shall be permitted.

No General Meeting may be held unless at least 25 percent of eligible financial Members attend throughout the meeting and this will constitute a quorum.

If, within half an hour after the time appointed for a meeting a quorum is not present, the meeting – if convened upon request of Members – shall be dissolved. In any other case it shall stand adjourned to a day, time and place determined by the Chairperson of the Society, and if at such adjourned meeting a quorum is not present those Members present in person or by proxy shall be deemed to constitute a sufficient quorum.

A Member is entitled to exercise one vote on any motion at a General Meeting in person or by proxy, and voting at a General Meeting shall be by voices or by show of hands or, on demand of the chairperson or of 2 or more Members present, by secret ballot.

Unless otherwise required by this Constitution, all questions shall be decided by a simple majority of those in attendance in person or by proxy and voting at a General Meeting or voting by remote ballot. Any decisions made when a quorum is not present are not valid.

The Society may pass a written resolution in lieu of a General Meeting, and a written resolution is as valid for the purposes of the Act and this Constitution as if it had been passed at a General Meeting if it is approved by no less than 75 percent of the Members who are entitled to vote on the resolution. A written resolution may consist of 1 or more documents in similar form (including letters, electronic mail, or other similar means of communication) each proposed by or on behalf of 1 or more Members. A Member may give their approval to a written resolution by signing the resolution or giving approval to the resolution in any other manner permitted by the Constitution (for example, by electronic means).

- General Meetings may be held at one or more venues by Members present in person and/or using any real-time audio, audio and visual, or electronic communication that gives each Member a reasonable opportunity to participate.
- All General Meetings shall be chaired by the Chairperson. If the Chairperson is absent, the Deputy Chairperson shall chair that meeting.
- Any person chairing a General Meeting has a deliberative and, in the event of a tied vote, a casting vote.
- Any person chairing a General Meeting may:
 - With the consent of a simple majority of Members present at any General Meeting adjourn the General Meeting from time to time and from place to place but no business shall be transacted at any adjourned General Meeting other than the business left unfinished at the meeting from which the adjournment took place.
 - Direct that any person not entitled to be present at the General Meeting, or obstructing the business of the General Meeting, or behaving in a disorderly manner, or being abusive, or failing to abide by the directions of the chairperson be removed from the General Meeting, and
 - In the absence of a quorum or in the case of emergency, adjourn the General Meeting or declare it closed.
- The Committee may propose motions for the Society to vote on ('Committee Motions'), which shall be notified to Members with the notice of the General Meeting.
- Any Member may request that a motion be voted on ('Member's Motion') at a General Meeting, by giving notice to the Secretary or Committee at least 4 Working Days before that meeting. The Member may also provide information in support of the motion ('Member's Information'). If notice of the motion is given to the Secretary or Committee before written Notice of the General Meeting is given to Members, notice of the motion shall be provided to Members with the written Notice of the General Meeting.

Minutes

The Society must keep minutes of all General Meetings.

Annual General Meetings: when they will be held

An Annual General Meeting shall be held once a year on a date and at a location and/or using any electronic communication determined by the Committee and consistent with any requirements in the Act, and the Constitution relating to the procedure to be followed at General Meetings shall apply.

The Annual General Meeting must be held no later than the earlier of the following—

- 6 months after the balance date of the Society
- 15 months after the previous annual meeting.

Annual General Meetings: business

The business of an Annual General Meeting shall be to—

- confirm the minutes of the last Annual General Meeting and any Special General Meeting(s) held since the last Annual General Meeting,
- adopt the annual report on the operations and affairs of the Society,
- adopt the Committee's report on the finances of the Society, and the annual financial statements,
- set any subscriptions for the current financial year,
- consider any motions of which prior notice has been given to Members with notice of the Meeting, and
- consider any general business.

The Committee must, at each Annual General Meeting, present the following information—

- an annual report on the operation and affairs of the Society during the most recently completed accounting period,
- the annual financial statements for that period, and
- notice of any disclosures of conflicts of interest made by Officers during that period (including a summary of the matters, or types of matters, to which those disclosures relate).

Special General Meetings

Special General Meetings may be called at any time by the Committee by resolution.

The Committee must call a Special General Meeting if it receives a written request signed by at least 50 percent of Members. Any resolution or written request must state the business that the Special General Meeting is to deal with.

The rules in this Constitution relating to the procedure to be followed at General Meetings shall apply to a Special General Meeting, and a Special General Meeting shall only consider and deal with the business specified in the Committee's resolution or the written request by Members for the Meeting.

COMMITTEE

Committee Composition

The Committee will consist of **five Officers**:

- **Co-Chairs:** Provide shared leadership for the Society. One Co-Chair shall focus on overall vision, partnerships, and finance; the other shall focus on creative leadership, installation delivery, and community relationships.
- **Treasurer:** Responsible for managing the Society's bank account, budgets, resourcing, and financial reporting.
- **Secretary:** Responsible for maintaining minutes, records, and official communications.
- **Research and Development Officer:** Responsible for leading innovation, experimentation, and development across livestream systems, infrastructure, digital tools, and emerging technologies.

Māori Representation

At least **70% of the Committee must be Māori**. This requirement is a core commitment of the Society's governance and kaupapa, ensuring leadership remains Māori-led and grounded in *tinorangatanga*, consistent with our values.

Functions of the Committee

From the end of each Annual General Meeting until the end of the next, the Society shall be managed by, or under the direction or supervision of, the Committee, in accordance with the Incorporated Societies Act 2022, any Regulations made under that Act, and this Constitution.

Powers of the Committee

The Committee has all the powers necessary for managing — and for directing and supervising the management of — the operation and affairs of the Society, subject to modifications, exceptions, or limitations contained in the Act or this Constitution.

Sub-committees

The Committee may appoint sub-committees consisting of such persons (whether or not Members of the Society) and for such purposes as it thinks fit. Unless otherwise resolved by the Committee:

- the quorum of every sub-committee is half the members of the sub-committee but not less than 2,
- no sub-committee shall have power to co-opt additional members,
- a sub-committee must not commit the Society to any financial expenditure without express authority from the Committee, and
- a sub-committee must not further delegate any of its powers.

General Matters: Committees

The Committee and any sub-committee may act by resolution approved during a conference call using audio and/or audio-visual technology or through a written ballot conducted by email, electronic voting system, or post, and any such resolution shall be recorded in the minutes of the next Committee or sub-committee meeting.

Other than as prescribed by the Act or this Constitution, the Committee or any sub-committee may regulate its proceedings as it thinks fit.

OFFICERS

Qualifications of Officers

Every Officer must be a natural person who—

- has consented in writing to be an Officer of the Society, and
- certifies that they are not disqualified from being elected or appointed or otherwise holding office as an Officer of the Society.

Officers must not be disqualified under section 47(3) of the Act from being appointed or holding office as an Officer of the Society.

Prior to election or appointment as an Officer a person must—

- consent in writing to be an Officer, and
- certify in writing that they are not disqualified from being elected or appointed as an Officer either by this Constitution or the Act.

Only a natural person may be an Officer. Each certificate shall be retained in the Society's records.

Officers' Duties

At all times each Officer:

1. shall act in good faith and in what they believe to be the best interests of the Society,
2. must exercise all powers for a proper purpose,
3. must not act, or agree to the Society acting, in a manner that contravenes the Act or this Constitution,
4. when exercising powers or performing duties as an Officer, must exercise the care and diligence that a reasonable person with the same responsibilities would exercise in the same circumstances, taking into account—
 - o the nature of the Society,
 - o the nature of the decision, and
 - o the position of the Officer and the responsibilities undertaken,
5. must not agree to the activities of the Society being carried on in a manner likely to create a substantial risk of serious loss to the Society or its creditors, and
6. must not agree to the Society incurring an obligation unless they believe at that time on reasonable grounds that the Society will be able to perform the obligation when it is required to do so.

Election or Appointment of Officers

1. Officers shall be elected during Annual General Meetings. If a vacancy occurs between AGMs, it shall be filled by resolution of the Committee, and any such appointment must be ratified at the next AGM.
2. Nominations must be submitted in writing at least 5 Working Days before the AGM, with written consent and confirmation of eligibility. If there are insufficient valid nominations, further nominations may be received from the floor at the AGM.
3. Votes shall be cast in such manner as the meeting determines. In the event of a tie, the incoming Committee shall resolve the result.
4. Two Members (who are not nominees) or non-Members appointed by the meeting shall act as scrutineers for the counting of the votes and destruction of voting papers.
5. The roles of **Co-Chairs, Treasurer, Secretary, and Research & Development Officer** are standing Officer positions. Additional Officers may be appointed for a specific purpose, a limited period, or generally until the next AGM.

Term

- The term of office for all Officers elected to the Committee shall be **three years**, expiring at the end of the AGM in the year corresponding with the last year of each Officer's term.
- No Officer shall serve for more than **three consecutive terms**.
- No Co-Chair shall serve for more than **nine consecutive years** in that role.

Removal of Officers

An Officer may be removed by resolution of the Committee or the Society where, in the opinion of the Committee or the Society:

- The Officer has been absent from 5 Committee meetings without leave,
- The Officer has brought the Society into disrepute,
- The Officer has failed to disclose a conflict of interest, or
- The Committee passes a vote of no confidence in the Officer.

The removal takes effect from the date specified in the resolution.

Conflicts of Interest

An Officer or member of a sub-committee who has an interest in a matter must disclose details of the nature and extent of the interest:

1. to the Committee or sub-committee, and
2. in an Interests Register kept by the Committee.

An interested Officer may not vote on the matter or sign related documents unless all non-interested Officers consent. They may, however, take part in discussion and be present unless the Committee decides otherwise.

If 50% or more of Officers are prevented from voting due to interest, a Special General Meeting must be called to decide the matter, unless all non-interested Officers agree otherwise.

RECORDS

Register of Members

The Society shall keep an up-to-date Register of Members. For each current Member, the Register shall include the following:

- Name
- Date of joining (or “Unknown” if not recorded)
- Contact details, including a physical or electronic address, and a telephone number

The Register will also include each Member’s postal and email address (if any). The Society shall also keep a record of former Members for the previous 7 years, including name and date membership ceased.

Interests Register

The Committee shall maintain an up-to-date register of the interests disclosed by Officers and by members of any sub-committee.

Access to Information for Members

A Member may request information held by the Society. The request must specify the information sought in sufficient detail to enable identification.

The Society must, within a reasonable time after receiving a request:

1. provide the information, or
2. agree to provide the information within a specified period, or
3. agree to provide it subject to a reasonable charge to cover costs, or
4. refuse to provide it, giving reasons.

The Society may refuse if disclosure would prejudice privacy, financial position, or legal privilege, or if the request is frivolous, vexatious, or disproportionate.

FINANCES

Control and Management

The funds and property of the Society shall be:

- controlled, invested and disposed of by the Committee, subject to this Constitution, and
- devoted solely to the promotion of the purposes of the Society.

The Committee shall maintain bank accounts in the Society's name. All money received shall be banked within 5 Working Days. Proper accounting records must be kept in accordance with the Act, and retained for at least 7 years.

Balance Date

The Society's financial year shall commence on **1 April** of each year and end on **31 March**.

DISPUTE RESOLUTION

Meaning of Dispute and Complaint

A dispute is a disagreement or conflict involving the Society and/or its Members in relation to allegations such as:

- misconduct,
- breach of the Constitution or the Act, or
- damage to a Member's rights or interests.

Disputes may arise between Members, Officers, and/or the Society.

How Complaint is Made

A complaint must be made in writing, stating that the Member or Officer is starting a procedure for resolving a dispute, and setting out the allegations.

The Society may also make a complaint by notifying a Member or Officer in writing.

Rights to be Heard

- A complainant has the right to be heard before resolution.
- A respondent has the right to be heard, with sufficient details provided to enable response.

Hearings may be in writing or oral, and oral hearings are required where needed for fairness.

Investigating and Determining Disputes

The Society must ensure disputes are investigated and determined fairly, efficiently, and in accordance with the Act.

The Society may decline to proceed further if the complaint is trivial, lacks evidence, has been previously dealt with, or is unduly delayed.

Complaints may be referred to a subcommittee, external investigator, mediation, or arbitration (including tikanga-based practices) with consent of the parties.

Decision makers must be impartial.

LIQUIDATION AND REMOVAL FROM THE REGISTER

Resolving to Put Society into Liquidation

The Society may be liquidated in accordance with the provisions of Part 5 of the Act.

The Committee shall give 30 Working Days' written Notice to all Members of the proposed resolution to put the Society into liquidation.

The Committee shall also give written Notice to all Members of the General Meeting at which any such proposed resolution is to be considered. The Notice shall include all information as required by section 228(4) of the Act.

Any resolution to put the Society into liquidation must be passed by a two-thirds majority of all Members present and voting.

Resolving to Apply for Removal from the Register

The Society may be removed from the Register of Incorporated Societies in accordance with the provisions of Part 5 of the Act.

The Committee shall give 30 Working Days' written Notice to all Members of the proposed resolution to remove the Society from the Register of Incorporated Societies.

The Committee shall also give written Notice to all Members of the General Meeting at which any such proposed resolution is to be considered. The Notice shall include all information as required by section 228(4) of the Act.

Any resolution to remove the Society from the Register of Incorporated Societies must be passed by a two-thirds majority of all Members present and voting.

Surplus Assets

If the Society is liquidated or removed from the Register of Incorporated Societies, no distribution shall be made to any Member.

On liquidation or removal from the Register, surplus assets — after payment of all debts, costs, and liabilities — shall be vested in another not-for-profit entity with similar purposes, as decided by the Members at the time of liquidation.

However, the Society may approve a different distribution to a different not-for-profit entity, provided this complies with the Constitution and the Act.

ALTERATIONS TO THE CONSTITUTION

Amending this Constitution

All amendments must be made in accordance with this Constitution. Any minor or technical amendments shall be notified to Members as required by section 31 of the Act.

The Society may amend or replace this Constitution at a General Meeting by a resolution passed by a two-thirds majority of Members present and voting.

That amendment may also be approved by written resolution if authorised by this Constitution.

Any proposed resolution to amend or replace this Constitution shall be signed by at least 25% of eligible Members and given in writing to the Committee at least 5 Working Days before the General Meeting, accompanied by a written explanation of reasons.

At least 5 Working Days before the General Meeting at which any amendment is to be considered, the Committee shall give to all Members notice of the proposed resolution, the reasons for the proposal, and any recommendations of the Committee.

When an amendment is approved by a General Meeting it shall be notified to the Registrar in the form and manner required, and shall take effect from the date of registration.

OTHER

Common Seal

The Society will have a common seal that must be kept in the custody of an Officer.

The common seal may be affixed to any document:

1. by resolution of the Committee, and countersigned by 2 Officers, or
2. by such other means as the Committee may resolve from time to time.

Bylaws

The Committee may make and amend bylaws, policies, and codes of conduct for the conduct and control of Society activities.

No bylaw, policy, or code of conduct shall be inconsistent with this Constitution, the Act, regulations made under the Act, or any other legislation.